WRITING SAMPLE · PUBLIC PROBLEM ANALYSIS

Housing as a Human Right in a Public Health Crisis

A public problem analysis of homelessness and housing insecurity in the United States during the COVID-19 pandemic, with recommendations drawn from Marion County and Dane County.

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ACADEMIC WORK NOTICE

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The analysis, argument and sourcing are the author's original work. Figures and policy details reflect sources available in early 2021. Prepared for portfolio and professional evaluation purposes.

Public problem identification

Public health is at the forefront of worldwide concern; access to consistent shelter must therefore be considered a multidimensional determinant of public health.

Common statewide policies and best practices enacted to combat the COVID-19 pandemic — self-quarantine, social isolation, stay-at-home orders — are impossible to adhere to without permanent housing. Housing is a dominant concern for about one-third of the U.S. population, and that concern is growing due to high unemployment and economic uncertainty (Mehdipanah, 2020). Within this inequitable distribution of vulnerability, weaknesses in public policy related to homelessness and housing insecurity are quickly becoming a dominant, nationwide concern, while historically the United States has shown a lack of accountability in recognizing the human right to housing.

A stark gap exists between accepted human rights principles and the current housing system in the United States. With a history of underfunding programs for those experiencing homelessness, the pandemic prompted even more shirking of responsibility by the federal government. As one of the most individualistic cultures in the world, Americans are more likely to prioritize themselves over a group, and the pandemic exacerbated this cultural individualism. A debate over who is responsible for public health quickly followed, with some states delegating authority to local municipalities and others asserting that the federal government should bear more responsibility.

Policy development regarding housing as a human right dates back to the Great Depression and the New Deal. Housing insecurity existed before, but the Depression provided the political impetus for a federal response to an issue that had become a crisis. The National Housing Act was enacted to "encourage improvement in housing standards and conditions," among other purposes, but did not acknowledge housing as a human right (National Housing Act, 1934). The Housing Act of 1949 stated a goal of "a decent home and a suitable living environment for every American family," and the United Nations had recognized housing as a human right in the Universal Declaration of Human Rights (UDHR) a year earlier, in 1948 (Housing Act of 1949; Resolution 217 A (III), 1948).

Even though the UDHR is a non-binding declaration, accountability efforts over the following decades were continuously undermined by slow ratification efforts until the United States ratified the International Covenant on Civil and Political Rights (ICCPR) in 1992 and the International Convention on the Elimination of All Forms of Racial Discrimination in 1994 (Tars, n.d.). Advocates have deemed the United States' historical lack of accountability regarding housing "simply unacceptable," asserting that human rights law requires the progressive and preventive realization of the right to the maximum extent of the country's available resources, in a non-discriminatory manner (National Law Center on Homelessness & Poverty, 2011).

Raising public awareness

The continued criminalization of poverty and homelessness tends to remove the homeless population from public view. Anti-homeless legislation has persisted throughout modern

history, fostering apathy toward an obvious indicator of governmental failure. However, raising public awareness through emotional appeal can provide a pathway toward more sympathetic legislation for those experiencing a lack of affordable housing (Amster, 2003).

Beginning at the local level, capturing and reporting data from advocacy coalitions is imperative to increasing public awareness. Through data collection efforts by public-private partnerships among nonprofit service providers, the business community and government entities, awareness grows across sectors and reaches an increasingly broad audience. Developing a service delivery system using this cross-section of data allows services to be tailored to the specific needs of each area's homeless population. Increased visibility, together with data collection, makes the public aware of the governmental failure and helps prioritize requests for relief before local legislative bodies (Hill, 2002).

While it is too soon to determine the national impact of the COVID-19 pandemic on homelessness, recent data support early predictions about its influence on this vulnerable population. A Point-in-Time (PIT) count revealed that in January 2019, 17 out of every 10,000 people in the United States were experiencing homelessness on a single night. The 567,715 people experiencing homelessness nationwide outnumber the populations of several countries. A 3% increase between 2018 and 2019 marked the third consecutive year of national increases. Overall, homelessness had decreased by 12% since 2007, when nationwide data collection began, but the United States' COVID-19 response has the potential to erase those gains (HUD, 2019).

Similar to the political reaction to the Great Depression, national actors have recognized the political impetus presented by the pandemic. In March 2020, U.S. Representative Pramila Jayapal (WA-07) introduced the Housing is a Human Right Act of 2020, co-sponsored by Representative Grace Meng (NY-06). The act aims to "address and end root causes of homelessness; transition communities towards providing housing for all; and ensure full democratic participation of persons experiencing homelessness" (Letona, 2020).

The Indiana University Center for Research on Inclusion & Social Policy conducted the 2020 Marion County PIT Count, which found that while the number of people experiencing homelessness rose by 1%, the number of unsheltered people increased by 77%. Although the overall count falls within the standard range of the past decade, unsheltered individuals accounted for 12% of the homeless population, compared with 7% in 2019. The PIT count notes that extreme weather in 2019 may have led to an undercount of unsheltered individuals, but a 77% increase is still substantially more than previously counted (Stringham-Marquis et al., 2020).

Recommendations

Increase supply and reduce unaffordable demand

Because lack of affordability is rooted in a disequilibrium of supply and demand, government intervention that increases supply or decreases demand should be pursued. Although the housing market has been studied extensively from an economic perspective, states may need to intervene when the market renders housing unaffordable. The human right to adequate housing requires governments to create conditions in which homelessness can be minimized and to prioritize the housing needs of people experiencing homelessness. States therefore have an immediate obligation to take concrete steps toward fulfilling, and promoting the national realization of, the right to adequate housing (Segal, 2019).

Pair housing rights advocacy with the right to counsel

While broadly addressing homelessness would create conditions to minimize the problem, legal action alone cannot eliminate it. Fewer than one in five legal problems experienced by low-income people, such as eviction or foreclosure, are addressed with legal aid, while the ICCPR requires member states to ensure "meaningful access to justice, including meaningful access to counsel in civil cases where the interests of justice so require" (Kaufman et al., 2014). Underrepresentation in civil proceedings results from the absence of a federally recognized categorical right to counsel.

Historically, domestic courts have shown more willingness to remedy procedural inequality than to order direct reallocation of funds. This suggests that a strategy pairing direct housing rights advocacy with the right to counsel may provide a basis for new alliances and broader coalitions. Promoting the right to legal representation is fundamental to preserving the human right to housing because the "procedural" right to counsel and the "substantive" claim to adequate housing are deeply intertwined.

Learn from Dane County, Wisconsin

As the largest jurisdiction in the United States to formally recognize the international human right to adequate housing, Dane County, Wisconsin sets a precedent for progressive housing policy. The fastest-growing county in Wisconsin and home to the state capital of Madison, Dane County has nearly 550,000 residents in more than 60 villages, towns and cities. In line with national trends, demand for homeless shelter space quickly exceeded availability. More than 2,400 people were turned away from shelter due to lack of space or lack of funds for motel vouchers, and 92% of those turned away were families. Where shelter was available, resource limits allowed families with children only a 90-day stay, with a 180-day lifetime limit.

In response, the Dane County Board of Supervisors adopted Resolution 292 (2011–12), addressing the growing inability of individuals and families to find shelter. A distinctive feature of this human rights resolution is its urgency: it paired legislative action with a budget for homeless services, the creation of an affordable housing fund, and the county's first homeless navigation system. During the pandemic, Dane County also adopted progressive measures, including health assessments of the homeless population from the start of the response, isolation space for symptomatic individuals to recover without exposing congregate shelter guests, and regular testing at congregate shelters to identify asymptomatic guests and connect them to care (Becker, 2020).

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